

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,
Complainant

v.

AMAZON.COM SERVICES LLC, AMAZON
LOGISTICS, INC., and BEIJING CENTURY JOYO
COURIER SERVICE CO., LTD.,
Respondents.

DOCKET NO. 25-04

**JOINT MOTION FOR ENTRY OF CONFIDENTIALITY STIPULATION AND
PROPOSED PROTECTIVE ORDER**

Complainant China United Lines, Ltd. and Respondents Amazon.com Services LLC (“Amazon Services”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”) hereby move the Commission to enter the Confidentiality Stipulation and Proposed Protective Order executed by the Parties and attached hereto as Attachment A. The Parties have jointly drafted the attached and agree to be bound by all the terms contained therein.

WHEREFORE, the Parties request that the Commission grant this motion for entry of the submitted Confidentiality Stipulation and Proposed Order of Confidentiality.

Respectfully submitted,

___/s/___ John Longstreth___

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August 11, 2025

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Before the
FEDERAL MARITIME COMMISSION
Docket No. 25-04
CHINA UNITED LINES, LTD., COMPLAINANT v. AMAZON.COM SERVICES LLC,
AMAZON LOGISTICS, INC. AND BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD., RESPONDENTS

CONFIDENTIALITY STIPULATION AND PROPOSED PROTECTIVE ORDER

WHEREAS, the above-captioned Federal Maritime Commission proceeding (the “Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as the risk of economic loss, annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED by the respective undersigned counsel for Complainant China United Lines, LTD (“CUL”) and Respondents Amazon.com Services LLC (“Amazon Services”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”) (collectively “Amazon”), (each a “Party” and, collectively, the “Parties”) that this Confidentiality Stipulation and Proposed Protective Order shall be applicable to this Proceeding and shall govern the protection of all hard copy and electronic information, documents, and materials produced or disclosed in relation to this Proceeding that include “Protected Information,” including any information copied or extracted therefrom; all copies, excerpts, summaries, or compilations thereof; and testimony, conversations, or presentations by Parties or their counsel that include Protected Information. Protected Information includes Confidential Information designated pursuant to Paragraph 1 of this Order and Attorneys’ Eyes Only material designated pursuant to Paragraph 2 of this Order. A person (including a Party or any person that is not a Party) that produces or discloses such information, documents, or materials in this

Proceeding shall be referred to hereinafter as a “Producing Party.” Any Party to this Proceeding who receives Protected Information shall be referred to hereinafter as “Receiving Party.”

Definition of Confidential Information

1. A Producing Party may designate as Confidential Information any material which contains private, secret, or restricted information of any party that by its nature must be maintained in confidence to maintain the interests of that Party, including but not limited to:

- a. previously nonpublic financial information (including, without limitation, profitability reports or estimates, percentage fees, design fees, royalty rates, minimum guarantee payments, sales reports, and sale margins);
- b. previously nonpublic contracts terms between the Parties;
- c. information received in confidence or under restriction from disclosure from third parties; or
- d. any other category of information hereinafter given Confidential status by the Administrative Law Judge (“ALJ”) or the Commission.

Definition of Attorneys’ Eyes Only Information

2. A Producing Party may designate Attorneys’ Eyes Only only such portion of material as consists of any nonpublic information that it deems in good faith would lead to significant harm or injury to the reputation and/or business of the Producing Party, including but not limited to:

- a. previously nonpublic business plans, product development information, marketing plans, trade secrets, and other competitively sensitive information;

- b. any information implicated by Chinese data security laws, including but not limited to the Cybersecurity Law of the People's Republic of China, the Data Security Law of the People's Republic of China, and/or the Personal Information Protection Law of the People's Republic of China; or
- c. any other category of information hereinafter given Attorneys' Eyes Only status by the ALJ or the Commission.

General Provisions

3. Any Producing Party designating any material produced in discovery as "Confidential" and/or "Attorneys' Eyes Only" shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 C.F.R. § 502.141(j)(1)(vii).

4. Any material produced in discovery, including Protected Information, shall be used solely in this Proceeding, and shall not be used by the Receiving Party for any business, commercial, competitive, personal, or other purpose.

5. No person subject to this Stipulation and Order, other than the Producing Party, shall disclose any Confidential Information to any other person, except for:

- a. the Parties to this proceeding (including, without limitation, the Parties' employees, contractors, in-house counsel, and agents who have a need to know the Confidential Information);
- b. outside counsel retained in connection with this proceeding and any related action, including any paralegal, clerical and other assistant employed by such counsel and assigned to this matter, and vendors retained by such counsel;

- c. as to any document, its author, addressee, and any other person indicated on the face of the document as having received a copy;
 - d. any mediator or arbitrator engaged by the Parties in this matter, provided such person has first executed a Certification and Agreement to be Bound by Confidentiality Stipulation and Protective Order in the form attached hereto as Appendix A;
 - e. any witness who counsel for a party in good faith believes may be called to testify at trial or deposition in this action may only be shown Confidential Information reasonably related to their anticipated testimony, provided such person has first executed a Certification in the form attached hereto as Appendix A;
 - f. any third party retained by a party to serve as an expert witness in connection with this proceeding, provided such person has first executed a Certification in the form attached hereto as Appendix A;
 - g. stenographers engaged to transcribe depositions conducted in this proceeding; and
 - h. Chief Administrative Law Judge Wirth (the “ALJ”), the Commission, and Commission staff and personnel; and
6. No person subject to this Stipulation and Order, other than the Producing Party, shall disclose any Attorneys’ Eyes Only information to any other person, except for those identified in Paragraphs 5(b), 5(c), 5(d), 5(e), 5(f), 5(g), and 5(h). In addition, Attorneys’ Eyes Only information may be disclosed to the following in-house counsel at each Party:
- a. For China United Lines, LTD: Teresa Zhu, Ashley Xu, and Jin Huang
 - b. For Amazon.com Services LLC: Tanisha Creed, Stacey LaRiviere, and Casey O’Brien.

By mutual agreement, the Parties may add to or change the in-house counsel designated in this Paragraph as circumstances require.

7. Persons identified in Paragraphs 5(d), 5(e), 5(f), 5(g) shall read and agree to the terms of this Confidentiality Stipulation and Proposed Protective Order, and sign a Certification form annexed at Appendix A, before receiving or viewing any information or Proceeding Material designated as Confidential Information or Attorneys Eyes Only by any Producing Party other than the Party that retained such person.

8. Other than deposition transcripts and exhibits, the Producing Party or its counsel may designate any material produced in discovery as “Confidential Information” or “Attorneys’ Eyes Only” by stamping or otherwise clearly marking as “Confidential” or “Attorneys’ Eyes Only” the protected portion in a manner that will not interfere with legibility or audibility.

9. Any party to this agreement may designate testimony given or information produced at a deposition as Confidential or Attorneys’ Eyes Only by making a statement on the record of the deposition or in writing within ten (10) days after the close of the deposition. Until the passing of ten (10) days from the closing of the deposition, all testimony given or information produced at such deposition shall be treated as Confidential. Any person that designates testimony or information produced at a deposition as Confidential or Attorneys’ Eyes Only shall review and declassify all non-confidential portions of the deposition transcript within thirty (30) days of receipt of the final transcript. If the person requires additional time to declassify the testimony or information, they may request additional time in writing to the party(ies) awaiting declassification, whose consent shall not be unreasonably withheld. Until the expiration of that thirty (30) day period, or such longer period as agreed to between the parties, the parties agree to treat the portion

of such deposition transcript and exhibits as Confidential or Attorneys' Eyes Only per the designation made by the producing person.

10. Unless otherwise ordered, or agreed to by a Producing Party with respect to material that party has produced, this Confidentiality Stipulation and Proposed Protective Order shall survive the termination of this proceeding. Within 30 days of the final disposition of this proceeding, all material designated as Confidential Information or Attorneys' Eyes Only, and all copies thereof, shall be promptly returned or destroyed. Notwithstanding the foregoing sentence, counsel for the Parties may retain copies of the other Parties' Confidential or Attorneys' Eyes Only Information, but any Confidential or Attorneys' Eyes Only Information so retained shall remain subject to the restrictions set forth in this Protective Order.

Challenging Confidential Information and Attorneys' Eyes Only Designations

11. Any Party who objects to any designation of material as "Confidential" or "Attorneys Eyes Only," or who requests further limits on disclosure, may object at any time that is consistent with the then-operative Scheduling Order in this Proceeding.

12. The Party Challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party's outside counsel of record in the Proceeding.

13. If the challenging Party and the Producing Party are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting Party's counsel may move the ALJ to challenge the designation. The designated material shall continue to be deemed Confidential Information or Attorneys' Eyes Only until the ALJ rules on any such motion. The ALJ or the Commission retains discretion whether to afford confidential treatment to any materials, information or testimony designated as Confidential or Attorney's Eyes Only.

14. If a Producing Party fails to seek a protective order to uphold its designation, any disputed material will lose its Confidential or Attorneys' Eyes Only designation thirty (30) days after receipt of the letter referred to in Paragraph 12.

Use of Confidential Information in Commission Hearings

15. Protected Information disclosed to the ALJ and/or Commission in papers, including exhibits, shall be labeled in accordance with 46 C.F.R. § 502.5.

16. The provisions of this Confidentiality Stipulation and Proposed Protective Order shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the Proceeding pursuant to 46 C.F.R. § 502.141(j)(1).

Privileged and Protected Material

17. If, in connection with this proceeding, a Party inadvertently discloses information subject to a claim of attorney-client privilege or attorney-work product protection ("Inadvertently Disclosed Information"), such disclosure shall not constitute or be deemed a waiver or forfeiture of any claim of privilege or work-product protection with respect to the Inadvertently Disclosed Information and its subject matter.

18. If a Producing Party makes a claim of inadvertent disclosure, the Receiving Party shall not thereafter review the Inadvertently Disclosed Information for any purpose, except by order of the ALJ. Subject to the provisions of Fed. R. Evid. 502, the Receiving Party shall, within five (5) business days, return or destroy all copies of the Inadvertently Disclosed Information and confirm any such destruction in writing to the Producing Party.

Reservation of Rights

19. The ALJ shall retain jurisdiction over the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential or Attorneys'

Eyes Only Information disclosed under protection of this Confidentiality Stipulation and Proposed Protective Order.

20. If Protected Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, or is ordered to be disclosed by the Commission, the Party to whom the request has been made or an order directed shall promptly give written notice of such event to the Producing Party. No Party shall disclose another Producing Party's Protected Information pursuant to such process without first giving that Producing Party notice and an opportunity to seek an order governing disclosure of the requested Confidential Information. The Producing Party shall have the sole burden of defending against such request.

SO ORDERED:

The Hon. Erin M. Wirth
Chief Administrative Law Judge

APPENDIX A

Before the
FEDERAL MARITIME COMMISSION

Docket No. 25-04

CHINA UNITED LINES LTD., COMPLAINANT AND
AMAZON.COM SERVICES LLC, AMAZON LOGISTICS, INC., AND BEIJING CENTURY
JOYO COURIER SERVICE CO., LTD., RESPONDENTS

**CERTIFICATION AND AGREEMENT TO BE BOUND BY CONFIDENTIALITY
STIPULATION AND PROPOSED PROTECTIVE ORDER**

I, _____, state that:

1. My current business address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Confidentiality Stipulation and Proposed Protective Order executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Confidentiality Stipulation and Proposed Protective Order.
6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 6 or 7 of the Confidentiality Stipulation and Proposed Protective Order any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.

8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession, or destroy all such Confidential Information.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on _____

Signature

Printed Name